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SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30				1. REQUISITION NUMBER PR15905388		PAGE 1 OF 35 PAGES			
2. CONTRACT NO. 19GG8026D0003		3. AWARD/EFFECTIVE DATE 04/01/2026		4. ORDER NUMBER		5. SOLICITATION NUMBER		6. SOLICITATION ISSUE DATE 12/10/2025	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME Tamari Jashi			b. TELEPHONE NUMBER (No collect calls)		8. OFFER DUE DATE/ LOCAL TIME /	
9. ISSUED BY AMERICAN EMBASSY TBILISI 29 Georgian American Friendship Avenue, ATTN: GSO/PROCUREMENT TBILISI GEORGIA				CODE GG800		10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: ____% FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM NAICS: ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ EDWOSB ☐ EMERGING SMALL BUSINESS ☐ (A) SIZE STANDARD:			
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)		13b. RATING 14. METHOD OF SOLICITATION ☐ RFQ ☐ IFB ☒ RFP			
15. DELIVER TO AMERICAN EMBASSY TBILISI 29 Georgian American Friendship Avenue, ATTN: WAREHOUSE TBILISI 0131 GEORGIA				CODE		16. ADMINISTERED BY AMERICAN EMBASSY TBILISI 29 Georgian American Friendship Avenue, ATTN: GSO/PROCUREMENT 0131 GEORGIA			
17a. CONTRACTOR/ OFFEROR MAGTICOM TAMUNA PAVLIASHVILI 5 POLITKOVSKAIA TBILISI GEORGIA TELEPHONE NO.		CODE 683528109		FACILITY CODE		18a. PAYMENT WILL BE MADE BY AMERICAN EMBASSY TBILISI 29 Georgian American Friendship Avenue, ATTN: tbilisimovoucher@state.gov TBILISI GEORGIA			
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM					
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES				21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT	
(Use Reverse and/or Attach Additional Sheets as Necessary)									
25. ACCOUNTING AND APPROPRIATION DATA							26. TOTAL AWARD AMOUNT (For Govt. Use Only) 0.00 GEL		
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED									
☒ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED									
28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN ____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED HEREIN.					29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____, YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:				
30a. SIGNATURE OF OFFEROR/CONTRACTOR					31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)				
30b. NAME AND TITLE OF SIGNER (Type or print)			30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (Type or print) Anna Kosinska			31c. DATE SIGNED 03/15/2026	

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	IDIQ contract for mobile phone services for US Embassy Tbilisi Contract performance period April 1, 2026- March 31, 2027 with two option years to renew	12	MN		

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	
38. S/R ACCOUNT NO.	39. S/R VOUCHER NO.	40. PAID BY		
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY (<i>Print</i>)		
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER		42b. RECEIVED AT (<i>Location</i>)		
		42c. DATE REC'D (<i>YY/MM/DD</i>)		42d. TOTAL CONTAINERS

SECTION 1 - THE SCHEDULE

CONTINUATION TO SF-1449 IDIQ CONTRACT NUMBER 19GG8026D0003 PRICES, BLOCK 23

1. SCOPE OF CONTRACT

The Contractor shall provide mobile telephone services to the Embassy of the United States of America in Tbilisi, Georgia. The prices listed below shall include all labor, materials, insurance (see FAR 52.228-4 and 52.228-5), overhead, and profit. The Government will pay the Contractor on a monthly basis for Standard Services that have been satisfactorily performed.

II. PERIOD OF PERFORMANCE

The contract will be for a one-year period from the date of the contract award, with two (2) year options to renew.

III. PRICING

Base Year Prices: April 1, 2026 – March 31, 2027

Name	Description	# of Subscriptions Estimate	Monthly rate GEL	Annual Total (C x D x 12) GEL
A	B	C	D	E
	Group Plan Subscription (Fixed rate per phone to be billed monthly) (12 months x 190 SIMs) Standard GSM900/1800/1200Mh	190		
Package 1	Includes Unlimited voice calls and SMS/MMS to Magti, Geocell/Silknet, Selfie/Beeline, and customers of fixed-line networks of Georgia. 5 GB Mobile Data (LTE or better) in Georgia, International Calls Disabled.	300		
Package 2	Includes Unlimited voice calls and SMS/MMS to Magti, Geocell/Silknet, Selfie/Beeline, and customers of fixed-line networks of Georgia. Unlimited Mobile	100		

	Data (LTE or better) in Georgia, International Calls Enabled – capped at 45 minutes			
Package 3	Unlimited calls and SMS/MMS to Magti, Geocell/Silknet, Beeline, and customers of fixed-line networks of Georgia. No mobile data and international calls	300		

Grand total for the Base Year:

Internet Data package 5GB – shall be requested separately by the CO and COR-
The price for 5 GB Internet package is

International Voice roaming – enabled on request by CO and COR

International Voice roaming prices are given on the following link:

<https://www.magticom.ge/en/mobile/mobile-services/roaming/corporate-roaming>

International Data roaming - enabled on request by CO and COR

International Data roaming prices are given on the following link:

<https://www.magticom.ge/en/mobile/mobile-services/roaming/corporate-roaming>

• **The person using the number can independently activate voice and internet roaming services.**

Tariffs can be viewed at the following link: <https://www.magticom.ge/en/mobile/mobile-services/roaming/prepaid-roaming>

• **The tariffs for roaming services and international calls are published on the operator's website. Since changes to roaming service conditions depend on roaming partner companies, the published tariffs may be subject to change without prior notice to the subscriber. The subscriber is responsible for verifying the applicable tariff rates before using the service**

• **When using roaming services, the quality and availability of the service depend on the network capabilities of the roaming partner operators, and the operator shall not be responsible for the quality or continuity of the service.**

• **In the event that the balance/limit is exhausted and the service has not been restricted for the Customer, the Customer is obliged to pay for the services actually provided.**

When staying near the border zone of Georgia, the Customer's terminal device may automatically use the services of a foreign operator (if roaming is enabled for the subscriber number), which is also considered a roaming service and will be charged accordingly.

• **For any additional services whose terms/tariffs are not specified in this offer, MagtiCom's standard terms and tariffs, as published on the operator's website www.magticom.ge, shall apply.**

The number of packages listed above are estimates only and are not procured by the Embassy.

During this contract period, the Government shall place orders totaling a minimum of 50 plan subscriptions. This reflects the contract guarantee minimum for this period of performance. The number of all orders shall not exceed 800 plan subscriptions. This reflects the contract maximum for this period of performance.

First Option Year Prices: April 1, 2027 – March 31, 2028

Name	Description	# of Subscriptions Estimate	Monthly rate GEL	Annual Total (C x D x 12) GEL
A	B	C	D	E
	Group Plan Subscription (Fixed rate per phone to be billed monthly) (12 months x 190 SIMs) Standard GSM900/1800/1200Mh	190		
Package 1	Includes Unlimited voice calls and SMS/MMS to Magti, Geocell/Silknet, Selfie/Beeline, and customers of fixed-line networks of Georgia. 5 GB Mobile Data (LTE or better) in Georgia, International Calls Disabled.	300		
Package 2	Includes Unlimited voice calls and SMS/MMS to Magti, Geocell/Silknet, Selfie/Beeline, and customers of fixed-line networks of Georgia. Unlimited Mobile Data (LTE or better) in Georgia, International Calls Enabled – capped at 45 minutes	100		
Package 3	Unlimited calls and SMS/MMS to Magti, Geocell/Silknet, Beeline, and customers of fixed-line networks of Georgia. No mobile data and international calls	300		

Grand total for the I Option Year:

***Internet Data package 5GB – shall be requested separately by the CO and COR-
The price for 5 GB Internet package is [REDACTED]***

International Voice roaming – enabled on request by CO and COR

International Voice roaming prices are given on the following link:

<https://www.magticom.ge/en/mobile/mobile-services/roaming/corporate-roaming>

International Data roaming - enabled on request by CO and COR

International Data roaming prices are given on the following link:

<https://www.magticom.ge/en/mobile/mobile-services/roaming/corporate-roaming>

• The person using the number can independently activate voice and internet roaming services.

Tariffs can be viewed at the following link: <https://www.magticom.ge/en/mobile/mobile-services/roaming/prepaid-roaming>

• The tariffs for roaming services and international calls are published on the operator's website. Since changes to roaming service conditions depend on roaming partner companies, the published tariffs may be subject to change without prior notice to the subscriber. The subscriber is responsible for verifying the applicable tariff rates before using the service

• When using roaming services, the quality and availability of the service depend on the network capabilities of the roaming partner operators, and the operator shall not be responsible for the quality or continuity of the service.

• In the event that the balance/limit is exhausted and the service has not been restricted for the Customer, the Customer is obliged to pay for the services actually provided.

When staying near the border zone of Georgia, the Customer's terminal device may automatically use the services of a foreign operator (if roaming is enabled for the subscriber number), which is also considered a roaming service and will be charged accordingly.

• For any additional services whose terms/tariffs are not specified in this offer, MagtiCom's standard terms and tariffs, as published on the operator's website www.magticom.ge, shall apply.

The minutes and packages listed above are estimates only and are not procured by the Embassy.

During this contract period, the Government shall place orders totaling a minimum of 50 plan subscriptions. This reflects the contract guarantee minimum for this period of performance. The amount of all orders shall not exceed 800 plan subscriptions. This reflects the contract maximum for this period of performance.

Second Option Year Prices: April 1, 2028 – March 31, 2029

Name	Description	# of Subscriptions Estimate	Monthly rate GEL	Annual Total (C x D x 12) GEL
A	B	C	D	E
	Group Plan Subscription (Fixed rate per phone to be billed monthly) (12 months x 190 SIMs) Standard GSM900/1800/1200Mh	190		
Package 1	Includes Unlimited voice calls and SMS/MMS to Magti, Geocell/Silknet, Selfie/Beeline, and customers of fixed-line networks of Georgia. 5 GB Mobile Data (LTE or better) in Georgia, International Calls Disabled.	300		
Package 2	Includes Unlimited voice calls and SMS/MMS to Magti, Geocell/Silknet, Selfie/Beeline, and customers of fixed-line networks of Georgia. Unlimited Mobile Data (LTE or better) in Georgia, International Calls Enabled – capped at 45 minutes	100		
Package 3	Unlimited calls and SMS/MMS to Magti, Geocell/Silknet, Beeline, and customers of fixed-line networks of Georgia. No mobile data and international calls	300		

Grand total for the II Option Year:

**Internet Data package 5GB – shall be requested separately by the CO and COR-
The price for 5 GB Internet package is**

International Voice roaming – enabled on request by CO and COR

International Voice roaming prices are given on the following link:

<https://www.magticom.ge/en/mobile/mobile-services/roaming/corporate-roaming>

International Data roaming - enabled on request by CO and COR

International Data roaming prices are given on the following link:

<https://www.magticom.ge/en/mobile/mobile-services/roaming/corporate-roaming>

- ***The person using the number can independently activate voice and internet roaming services.***

Tariffs can be viewed at the following link: <https://www.magticom.ge/en/mobile/mobile-services/roaming/prepaid-roaming>

- ***The tariffs for roaming services and international calls are published on the operator's website. Since changes to roaming service conditions depend on roaming partner companies, the published tariffs may be subject to change without prior notice to the subscriber. The subscriber is responsible for verifying the applicable tariff rates before using the service***
- ***When using roaming services, the quality and availability of the service depend on the network capabilities of the roaming partner operators, and the operator shall not be responsible for the quality or continuity of the service.***
- ***In the event that the balance/limit is exhausted and the service has not been restricted for the Customer, the Customer is obliged to pay for the services actually provided.***

When staying near the border zone of Georgia, the Customer's terminal device may automatically use the services of a foreign operator (if roaming is enabled for the subscriber number), which is also considered a roaming service and will be charged accordingly.

- ***For any additional services whose terms/tariffs are not specified in this offer, MagtiCom's standard terms and tariffs, as published on the operator's website www.magticom.ge, shall apply.***

The minutes and packages listed above are estimates only and are not procured by the Embassy.

During this contract period, the Government shall place orders totaling a minimum of 50 plan subscriptions. This reflects the contract guarantee minimum for this period of performance. The amount of all orders shall not exceed 800 plan subscriptions. This reflects the contract maximum for this period of performance.

Base Year Total	
Option Year 1 Total	
Option Year 2 Total	
GRAND TOTAL FOR BASE + ALL OPTION YEARS	

VALUE ADDED TAX (VAT)

VALUE ADDED TAX. Value Added Tax (VAT) is not applicable to this contract and shall not be included in the CLIN rates or Invoices because the U.S. Embassy has a tax exemption certificate from the host government.

CONTINUATION TO SF-1449
IDIQ CONTRACT NUMBER 19GG8026D0003
INDEFINITE DELIVERY/INDEFINITE QUANTITY CONTRACT
SCHEDULE OF SERVICES, BLOCK 20

1. PERFORMANCE WORK STATEMENT

This IDIQ Contract is for mobile telephone services. The U.S. Embassy is using estimated 700 lines for official purposes. The Contractor shall provide complete mobile telephones services for the U.S. Embassy Tbilisi. Services provided shall include:

- SIM cards for Mobile Telephones
- Possibility to use e-SIM
- Calls within Georgia
- International calls
- International roaming
- Internet connection (high speed 4G, LTE or better)
- SMS messaging
- Voice Mail
- 24-hour Customer service
- Detailed billing of calls made
- Data service packages
- Guarantee that SMS aggregators will pass Verizon, OpenMarket SMS, and allow 2-way SMS with short Code AtHoc (28462)

The Contractor shall ensure that the connection through its network is of the highest quality possible and shall be uninterrupted, clear, and with no static. Network problems shall be remedied immediately, and the Contracting Officer's Representative (COR) must be informed immediately of any problems and their resolution.

1.1 EQUIPMENT PACKAGE (reserved)

1.2 CALLS WITHIN GEORGIA

The Contractor shall ensure on a 24-hour basis at least 90% local network coverage around Georgia with special consideration to all urban areas and main traffic routes.

1.3 INTERNATIONAL CALLS

The Contractor shall ensure on a 24-hour basis international connectivity worldwide with countries that telephone services are available.

1.4 INTERNATIONAL ROAMING

The Contractor shall provide as extensive international roaming connectivity as possible, with the special interest of the Embassy for roaming within all European countries, Asia, Africa and the USA.

The Contractor shall notify the COR immediately when a service charge for roaming exceeds a certain threshold. Each threshold shall be established by the Embassy of the United States based on individual cases.

1.5 WIRELESS APPLICATION PROTOCOL (WAP)

The Contractor shall provide Internet connection through its network to the Wireless Application Protocol (WAP) Internet sites.

1.6 SMS MESSAGING

The Contractor shall provide access to around-the-clock SMS messaging.

1.7 VOICE MAIL (RESERVED)

1.8 RENTAL OF CELL-PHONES WITH SIM CARDS (RESERVED)

1.9 CUSTOMER SERVICE

The Contractor shall provide technical support for, roaming questions, number changes, lost or stolen telephone reporting, manufacturer's warranty information, and all other matters concerning the mobile telephone services through the Contractor's Project Manager.

1.10 DETAILED BILLING

1.10.1 The Contractor shall provide a monthly breakdown of calls made by individual numbers. The breakdown shall clearly show:

- Called Number
- Time and Date of the Call
- Duration of the Call
- All data transfer (Internet) info
- Price

1.10.2 The monthly lists of calls made shall be forwarded to the Designated Billing Office (DBO) before the end of each current month for the previous month at the following address:

U.S. Embassy Tbilisi
29 Georgian-American Friendship Ave.
Tbilisi, Georgia
Attn: Financial Management Office (DBO).

Electronic bills shall be sent to TbilisiFMOVouchering@state.gov

1.11 Quality of Service Criteria

The service provider must ensure the service meets the following criteria:

- 1. Network Availability**
 - The service provider must ensure a minimum network uptime of 99.9% per month, excluding scheduled maintenance periods.
 - Any downtime exceeding this threshold must be reported within 24 hours and compensated according to the agreed terms.
- 2. Call Quality**
 - The service provider must maintain a call success rate of 98% or higher, ensuring minimal dropped calls and clear audio quality.
 - Call setup time must not exceed 5 seconds for 95% of calls.
- 3. Data Speed and Reliability**
 - The service provider must guarantee minimum data speeds of 10 Mbps download and 5 Mbps upload for 4G LTE services, or higher for 5G services, in covered areas.
 - Latency must not exceed 50 milliseconds for 95% of data transmissions.
 - Data Packet loss must be $\leq 0.5\%$
 - Data Service Provide must permit all IP ports and protocols (including but not limited to ICMP, UDP, TCP, and IPSEC) to transit without filters or proxies. Unfiltered access to the Internet is required without ISP firewall blocking or stateful inspection.
 -
- 4. Coverage**
 - The service provider must provide coverage in 90% of the geographic area specified in the contract, including urban, suburban, and rural zones.
 - Coverage maps must be provided and updated annually to reflect any changes.
- 5. Customer Support Response Time**
 - The service provider must respond to customer inquiries or complaints within 24 hours for standard issues and within 4 hours for urgent issues (e.g., service outages).
 - A dedicated account manager or support team must be assigned for contract management.
- 6. Service Restoration**
 - In the event of service disruption, the provider must restore services within 4 hours for minor outages and 12 hours for major outages.
- 7. Security and Privacy**
 - The service provider must comply with all applicable data protection laws and ensure encryption of customer data during transmission and storage.
 - Any security breaches must be reported within 24 hours, along with a mitigation plan.
- 8. Performance Monitoring and Reporting**

- The service provider must provide monthly performance reports detailing network uptime, call quality, data speeds, and customer support metrics.
 - The contracting party reserves the right to audit these reports or request independent verification.
- 9. Scalability and Future Upgrades**
- The service provider must ensure scalability to accommodate increased demand or technological upgrades (e.g., transition to 5G or beyond) without service disruption.
 - Any upgrades must be communicated at least 30 days in advance.
- 10. Must not have ZTE, Huawei, Xiaomi and affiliated branded products in use on the internet connection. Post may not enter contract (or extend or renew contract) with an entity that uses above mentioned equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.**

2. INVOICING

(a) The Contractor shall submit monthly invoices to the DBO at the address shown in paragraph d below. A proper invoice must include the following information:

- Contractor's name and bank account information for payments by wire transfers,
- Invoice date,
- Contract number,
- A summary showing a listing of each line with total monthly price in local currency for that line. A detailed invoice for each Embassy agency must be attached to each summary invoice and should include the cost breakdown by each telephone line according to the pricing schedule,
- A detailed list of all calls made for each line,
- Prompt payment discount, if any,
- Name, title, phone number, and address of person to contact in case of a defective invoice.

(b) If an invoice does not contain the above information, the Embassy reserves the right to reject the invoice as improper and return it to the Contractor within seven (7) calendars days for the Contractor to then correct and return the invoice.

(c) The COR will take each summary invoice and furnish the detailed invoice to the appropriate official in each Embassy agency. That agency representative will review the detailed invoice and either approve for payment or advise the COR of the inaccuracies found. It shall be the COR who will interact with the Contractor on any invoice problems.

(d) The Contractor will send all invoices to the following address:

TbilisiFMOVouchering@state.gov

(e) Payment shall be made in local currency by Electronic Funds Transfer (EFT) within thirty (30) days of receipt of a proper invoice.

(f) The Embassy will provide annual proof of a direct exemption of Value Added Tax (VAT), according to Georgian VAT laws.

3. KEY PERSONNEL

3.1 The Contractor's Project Manager must be able to converse in English and Georgian. The Contractor shall assign to this contract the following key person:

POSITION/FUNCTION:

3.2 During the first ninety (90) days of performance, the Contractor shall make no substitutions of key personnel unless the substitution is required due to illness, death, or termination of employment. The Contractor shall notify the Contracting Officer (CO) within fifteen (15) calendar days of the occurrence of any of these events and provide the information required below to the Contracting Officer before making any permanent substitutions.

3.3 After the first ninety (90) days of performance, the Contractor may substitute a key person if the Contractor determines that it is necessary. The Contractor shall notify the Contracting Officer of the proposed action immediately. Prior to making the substitution, the Contractor will provide the information required below to the Contracting Officer.

3.4 The Contractor shall provide a detailed explanation of the circumstances requiring the proposed substitution, and a complete resume for the proposed substitute. The proposed substitute shall possess qualifications comparable to the original key person. The Contracting Officer will notify the Contractor of its approval or disapproval of the substitution within fifteen (15) calendar days of receiving the required information. The Embassy will modify the contract to reflect any changes in key personnel.

4. PERMITS

Without additional cost to the Embassy, the Contractor shall obtain all permits, licenses, and appointments required for the work under this contract. The Contractor shall obtain these permits, licenses, and appointments in compliance with applicable Georgia laws.

5. GOVERNMENT FURNISHED PROPERTY

5.1 The Embassy intends to use Embassy-Owned GSM phones and Smart Phones with accessories. The contractor shall provide a fully functional SIM card, telephone number and appropriate security PIN and PUK codes for all existing Embassy cell phones.

5.2 A list of Cell-Phone Types that the Embassy owns and intends to use with the services provided in this contract are:

GSM 900/1800/1900 Compatible Cell Phones and Department of State approved iPhones and android phones.

6. ADDITION OF NEW LINES

The contractor will provide a fully functional SIM card, telephone number and appropriate security codes PIN and PUK codes to the COR within twenty-four (24) hours of receiving a delivery order under the contract.

7. NON-OFFICIAL LINES

This Contract is valid only for official Embassy needs.

8. DISCLOSURE OF INFORMATION

Any information made available to the Contractor by the Embassy shall be used only for the purpose of carrying out the provisions of this contract and shall not be divulged or made known in any manner to any person except as may be necessary in the performance of the contract.

9. TECHNOLOGICAL REFRESHMENT

After contract award, the Embassy may; pursuant to FAR clause 52.212-4 - Contract Terms and Conditions—Commercial Items, paragraph (c), Changes; request changes within the scope of the contract. These changes may be required to improve performance or react to changes in technology.

The Contractor may propose for the Embassy's technological refreshment, substitutions or additions for any provided products or services that may become available as a result of technological improvements. The Embassy may, at any time during the term of this contract or any extensions thereof, modify the contract to acquire products which are similar to those under the contract and that the Contractor has, or has not, formally announced for marketing purposes. This action is within the scope of the contract. At the option of the Embassy, a demonstration of the substitute product may be required. The Embassy is under no obligation to modify the contract in response to the proposed additions or substitutions.

Such substitutions or additions may include any part of, or all of, a given product(s), provided the following conditions are met and substantiated by documentation in the technological refreshment proposal:

- (a) The proposed product(s) shall meet all of the technical specifications of this document and conform to the terms and conditions cited in the contract.
- (b) The proposed product(s) shall have the capacity, performance, or functional characteristics equal to or greater than, the current product(s).
- (c) The proposal shall discuss the impact on hardware, services, and delivery schedules. The cost of the changes not specifically addressed in the proposal shall be borne entirely by the Contractor.
- (d) Contractor has the right to withdraw, in whole or in part, any technological refreshment proposal prior to acceptance by the Embassy. Contractor will use commercially reasonable efforts to ensure that prices for substitutions or additions are comparable to replaced or discontinued products. If a technological refreshment proposal is accepted and made a part of this contract, an equitable adjustment, increasing or decreasing the contract price, may be required and any other affected provisions of this contract shall be made in accordance with FAR clause 52.212-4, paragraph (c), Changes, and other applicable clauses of the contract.

10. SPECIAL SHORT-TERM PROMOTION

For the entire contract duration, the Contractor will offer the Embassy the option to take advantage of any promotional programs that it offers and that are suited for use by U.S. Embassy staff. The Embassy, at its own discretion, will have the option to accept or reject the opportunity.

11. DELIVERY ORDERS

The Contracting Officer will issue delivery orders to order phone services to the Contractor for performance of work under this contract. If an order is given orally, it will be followed by a written delivery order within seven (7) calendar days.

12. TRAINING (RESERVED)

13. SIM RETURN/DEFECTIVE POLICY

If a SIM is defective or is being returned, the SIM will be exchanged within one (1) business day.

14. CUSTOMER SERVICE CENTERS

The Contractor is to provide a telephone number for the purpose of reporting equipment problems and malfunctions, billing inquiries, and customer questions regarding accounts and services.

15. SURVIVABILITY AND RECOVERY

The Contractor shall have a working system of network survivability in case of emergencies and serious disasters when all networks may be jammed or when parts of the network are non-functioning.

The Contractor shall have a recovery plan in place that shall deal with such occurrences.

16. QUALITY ASSURANCE AND SURVEILLANCE PLAN (QASP)

This plan provides an effective method to promote satisfactory contractor performance. The QASP provides a method for the Contracting Officer's Representative (COR) to monitor Contractor performance, advise the Contractor of unsatisfactory performance, and notify the Contracting Officer of continued unsatisfactory performance. The Contractor, not the Embassy, is responsible for management and quality control to meet the terms of the contract. The role of the Embassy is to monitor quality and ensure contract standards are achieved.

Performance Objective	Scope of Work Para	Performance Threshold
<u>Services.</u> Performs all services set forth in the scope of work.	1. thru 15.	All required services are performed and no more than one (1) valid customer complaint is received per month.

11.1 Surveillance. The COR will receive and document all complaints from Government personnel regarding the services provided. If appropriate, the COR will send the complaints to the Contractor for corrective action.

11.2 Standard. The performance standard is that the Government receives no more than one (1) customer complaint per month. The COR shall notify the Contracting Officer of the complaints so that the Contracting Officer may take appropriate action to enforce the inspection clause (FAR 52.212-4, Contract Terms and Conditions-Commercial Items), if any of the services exceed the standard.

11.3 Procedures.

(a) If any Government personnel observe unacceptable services, either incomplete work or required services not being performed they should immediately contact the COR.

(b) The COR will complete appropriate documentation to record the complaint.

(c) If the COR determines the complaint is invalid, the COR will advise the complainant. The COR will retain the annotated copy of the written complaint for his/her files.

(d) If the COR determines the complaint is valid, the COR will inform the Contractor and give the Contractor additional time to correct the defect, if additional time is available. The COR shall determine how much time is reasonable.

- (e) The COR shall, as a minimum, orally notify the Contractor of any valid complaints.
- (f) If the Contractor disagrees with the complaint after investigation of the site and challenges the validity of the complaint, the Contractor will notify the COR. The COR will review the matter to determine the validity of the complaint.
- (g) The COR will consider complaints as resolved unless notified otherwise by the complainant.
- (h) Repeat customer complaints are not permitted for any services. If a repeat customer complaint is received for the same deficiency during the service period, the COR will contact the Contracting Officer for appropriate action under the Inspection clause.

SECTION 2 - CONTRACT CLAUSES

52.212-4 CONTRACT TERMS AND CONDITIONS – COMMERCIAL ITEMS (NOV 2023) IS INCORPORATED BY REFERENCE. (SEE SF-1449, BLOCK 27A)

FAR 52.212-5 Contract Terms and Conditions Required to Implement Statutes or Executive Orders—Commercial Products and Commercial Services (JAN 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

- (1) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (2) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).
- (3) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (4) [52.209-10](#), Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).
- (5) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)).
- (6) [52.233-3](#), Protest After Award (Aug 1996) (31 U.S.C. 3553).
- (7) [52.233-4](#), Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

- ___ (1) [52.203-6](#), Restrictions on Subcontractor Sales to the Government (Jun 2020), with *Alternate I* (Nov 2021) (41 U.S.C. 4704 and [10 U.S.C. 4655](#)).
- ___ (2) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).
- ___ (3) [52.203-15](#), Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)
- ___ (4) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR [3.900](#)(a).
- X (5) [52.204-10](#), Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) ([31 U.S.C. 6101 note](#)).
- ___ (6) [Reserved].

- ___ (7) [52.204-14](#), Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).
- ___ (8) [52.204-15](#), Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).
- _X_ (9) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).
- ___ (10) [52.204-28](#), Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) ([Pub. L. 115–390](#), title II).
- _X_ (11)
- (i) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) ([Pub. L. 115–390](#), title II).
- ___ (ii) Alternate I (Dec 2023) of [52.204-30](#).
- _X_ (12) [52.209-6](#), Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) ([31 U.S.C. 6101 note](#)).
- ___ (13) [52.209-9](#), Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) ([41 U.S.C. 2313](#)).
- ___ (14) [Reserved].
- ___ (15) [52.219-3](#), Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) ([15 U.S.C. 657a](#)).
- ___ (16) [52.219-4](#), Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).
- ___ (17) [Reserved]
- ___ (18)
- (i) [52.219-6](#), Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
- ___ (ii) Alternate I (Mar 2020) of [52.219-6](#).
- ___ (19)
- (i) [52.219-7](#), Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).
- ___ (ii) Alternate I (Mar 2020) of [52.219-7](#).
- ___ (20) [52.219-8](#), Utilization of Small Business Concerns (Jan 2025)([15 U.S.C. 637](#)(d)(2) and (3)).
- ___ (21)
- (i) [52.219-9](#), Small Business Subcontracting Plan (Jan 2025) ([15 U.S.C. 637](#)(d)(4)).
- ___ (ii) Alternate I (Nov 2016) of [52.219-9](#).
- ___ (iii) Alternate II (Nov 2016) of [52.219-9](#).
- ___ (iv) Alternate III (Jun 2020) of [52.219-9](#).
- ___ (v) Alternate IV (Jan 2025) of [52.219-9](#).
- ___ (22)
- (i) [52.219-13](#), Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).
- ___ (ii) Alternate I (Mar 2020) of [52.219-13](#).
- ___ (23) [52.219-14](#), Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).
- ___ (24) [52.219-16](#), Liquidated Damages—Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).

___ (25) [52.219-27](#), Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).

___ (26)

(i) [52.219-28](#), Postaward Small Business Program Representation (Jan 2025) (15 U.S.C. 632(a)(2)).

___ (ii) Alternate I (Mar 2020) of [52.219-28](#).

___ (27) [52.219-29](#), Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).

___ (28) [52.219-30](#), Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).

___ (29) [52.219-32](#), Orders Issued Directly Under Small Business Reserves (Mar 2020) ([15 U.S.C. 644\(r\)](#)).

___ (30) [52.219-33](#), Nonmanufacturer Rule (Sep 2021) ([15 U.S.C. 637\(a\)\(17\)](#)).

___ (31) [52.222-3](#), Convict Labor (Jun 2003) (E.O.11755).

X (32) [52.222-19](#), Child Labor—Cooperation with Authorities and Remedies (Jan 2025)([E.O. 13126](#)).

___ (33) [52.222-21](#), Prohibition of Segregated Facilities (Apr 2015).

___ (34)

(i) [52.222-26](#), Equal Opportunity (Sep 2016) (E.O.11246).

___ (ii) Alternate I (Feb 1999) of [52.222-26](#).

___ (35)

(i) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) ([38 U.S.C. 4212](#)).

___ (ii) Alternate I (Jul 2014) of [52.222-35](#).

___ (36)

(i) [52.222-36](#), Equal Opportunity for Workers with Disabilities (Jun 2020) ([29 U.S.C. 793](#)).

___ (ii) Alternate I (Jul 2014) of [52.222-36](#).

___ (37) [52.222-37](#), Employment Reports on Veterans (Jun 2020) ([38 U.S.C. 4212](#)).

___ (38) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496).

X (39)

(i) [52.222-50](#), Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

___ (ii) Alternate I (Mar 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).

___ (40) [52.222-54](#), Employment Eligibility Verification (Jan 2025) ([Executive Order 12989](#)).

(Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR [22.1803](#).)

___ (41)

(i) [52.223-9](#), Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

___ (ii) Alternate I (May 2008) of [52.223-9](#) (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

___ (42) [52.223-11](#), Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) ([42 U.S.C. 7671](#), *et seq.*).

- ___ (43) [52.223-12](#), Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ___ (44) [52.223-20](#), Aerosols (May 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ___ (45) [52.223-21](#), Foams (May 2024) ([42 U.S.C. 7671](#), *et seq.*).
- ___ (46) [52.223-23](#), Sustainable Products and Services (May 2024) ([E.O. 14057](#), [7 U.S.C. 8102](#), [42 U.S.C. 6962](#), [42 U.S.C. 8259b](#), and [42 U.S.C. 7671l](#)).
- ___ X_ (47)
- (i) [52.224-3](#) Privacy Training (Jan 2017) ([5 U.S.C. 552](#) a).
- ___ (ii) Alternate I (Jan 2017) of [52.224-3](#).
- ___ (48)
- (i) [52.225-1](#), Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).
- ___ (ii) Alternate I (Oct 2022) of [52.225-1](#).
- ___ (49)
- (i) [52.225-3](#), Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) ([19 U.S.C. 3301](#) note, [19 U.S.C. 2112](#) note, [19 U.S.C. 3805](#) note, [19 U.S.C. 4001](#) note, [19 U.S.C. chapter 29](#) (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).
- ___ (ii) Alternate I [Reserved].
- ___ (iii) Alternate II (Jan 2025) of [52.225-3](#).
- ___ (iv) Alternate III (Feb 2024) of [52.225-3](#).
- ___ (v) Alternate IV (Oct 2022) of [52.225-3](#).
- ___ X_ (50) [52.225-5](#), Trade Agreements (NOV 2023) ([19 U.S.C. 2501](#), *et seq.*, [19 U.S.C. 3301](#) note).
- ___ X_ (51) [52.225-13](#), Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ___ (52) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ___ (53) [52.226-4](#), Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- ___ (54) [52.226-5](#), Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).
- ___ X_ (55) [52.226-8](#), Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) ([E.O. 13513](#)).
- ___ (56) [52.229-12](#), Tax on Certain Foreign Procurements (Feb 2021).
- ___ X_ (57) [52.232-29](#), Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, [10 U.S.C. 3805](#)).
- ___ (58) [52.232-30](#), Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, [10 U.S.C. 3805](#)).
- ___ X_ (59) [52.232-33](#), Payment by Electronic Funds Transfer-System for Award Management (Oct2018) ([31 U.S.C. 3332](#)).
- ___ (60) [52.232-34](#), Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).
- ___ (61) [52.232-36](#), Payment by Third Party (May 2014) (31 U.S.C. 3332).
- ___ X_ (62) [52.239-1](#), Privacy or Security Safeguards (Aug 1996) ([5 U.S.C. 552a](#)).

- X (63) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).
- (64) [52.242-5](#), Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).
- (65)
- (i) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and 10 U.S.C. 2631).
- (ii) Alternate I (Apr 2003) of [52.247-64](#).
- (iii) Alternate II (Nov 2021) of [52.247-64](#).

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

- (1) [52.222-41](#), Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).
- (2) [52.222-42](#), Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- (3) [52.222-43](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- (4) [52.222-44](#), Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) ([29U.S.C.206](#) and 41 U.S.C. chapter 67).
- (5) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- (6) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).
- (7) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).
- (8) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).
- (9) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).
- (10) [52.247-69](#), Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) ([49 U.S.C. 40118\(g\)](#)).

(d) *Comptroller General Examination of Record.* The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR [2.101](#), on the date of award of this contract, and does not contain the clause at [52.215-2](#), Audit and Records-Negotiation.

- (1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.
- (2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart [4.7](#), Contractor

Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)

(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) [52.203-13](#), Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) [52.203-17](#), Contractor Employee Whistleblower Rights (Nov 2023) ([41 U.S.C. 4712](#)).

(iii) [52.203-19](#), Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) [52.204-23](#), Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) [52.204-25](#), Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) [52.204-27](#), Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii)

(A) [52.204-30](#), Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) ([Pub. L. 115-390](#), title II).

(B) Alternate I (Dec 2023) of [52.204-30](#).

(viii) [52.219-8](#), Utilization of Small Business Concerns (Jan 2025) ([15 U.S.C. 637\(d\)\(2\)](#) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR [19.702](#)(a) on the date of subcontract award, the subcontractor must include [52.219-8](#) in lower tier subcontracts that offer subcontracting opportunities.

(ix) [52.222-21](#), Prohibition of Segregated Facilities (Apr 2015).

(x) [52.222-26](#), Equal Opportunity (Sep 2016) (E.O.11246).

(xi) [52.222-35](#), Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) [52.222-36](#), Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) [52.222-37](#), Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv) [52.222-40](#), Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause [52.222-40](#).

(xv) [52.222-41](#), Service Contract Labor Standards (Aug 2018) ([41 U.S.C. chapter 67](#)).

(xvi)

(A) [52.222-50](#), Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (Mar 2015) of [52.222-50](#) (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) [52.222-51](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) [52.222-53](#), Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) [52.222-54](#), Employment Eligibility Verification (Jan 2025) ([E.O. 12989](#)).

(xx) [52.222-55](#), Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) [52.222-62](#), Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii)

(A) [52.224-3](#), Privacy Training (Jan 2017) ([5 U.S.C. 552a](#)).

(B) Alternate I (Jan 2017) of [52.224-3](#).

(xxiii) [52.225-26](#), Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) [52.226-6](#), Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause [52.226-6](#).

(xxv) [52.232-40](#), Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) ([31 U.S.C. 3903](#) and [10 U.S.C. 3801](#)). Flow down required in accordance with paragraph (c) of [52.232-40](#).

(xxvi) [52.240-1](#), Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).

(xxvii) [52.247-64](#), Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) ([46 U.S.C. 55305](#) and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause [52.247-64](#).

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.229-12 TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION (FEB 2021)

(a) *Definitions.* As used in this clause—

Foreign person means any person other than a United States person.

United States person, as defined in [26 U.S.C. 7701\(a\)\(30\)](#), means—

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of [26 U.S.C. 7701\(a\)\(31\)](#)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) This clause applies only to foreign persons. It implements [26 U.S.C. 5000C](#) and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c)

(1) If the Contractor is a foreign person and has only a partial or no exemption to the withholding, the Contractor shall include the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, with each voucher or invoice submitted under this contract throughout the period in which this status is applicable. The excise tax withholding is applied at the payment level, not at the contract level. The Contractor should revise each IRS Form W-14 submission to reflect the exemption (if any) that applies to that particular invoice, such as a different exemption applying. In the absence of a completed IRS Form W-14 accompanying a payment request, the default withholding percentage is 2 percent for the section 5000C withholding for that payment request. Information about IRS Form W-14 and its separate instructions is available via the internet at www.irs.gov/w14.

(2) If the Contractor is a foreign person and has indicated in its offer in the provision [52.229-11](#), Tax on Certain Foreign Procurements—Notice and Representation, that it is fully exempt from the withholding, and certified the full exemption on the IRS Form W-14, and if that full exemption no longer applies due to a change in circumstances during the performance of the contract that causes the Contractor to become subject to the withholding for the 2 percent excise tax then the Contractor shall—

(i) Notify the Contracting Officer within 30 days of a change in circumstances that causes the Contractor to be subject to the excise tax withholding under [26 U.S.C. 5000C](#); and

(ii) Comply with paragraph (c)(1) of this clause.

(d) The Government will withhold a full 2 percent of each payment unless the Contractor claims an exemption. If the Contractor enters a ratio in Line 12 of the IRS Form W-14, the result of Line 11 divided by Line 10, the Government will withhold from each payment an amount equal to 2 percent multiplied by the contract ratio. If the Contractor marks box 9 of the IRS Form

W-14 (rather than completes Lines 10 through 12), the Contractor must identify and enter the specific exempt and nonexempt amounts in Line 15 of the IRS Form W-14; the Government will then withhold 2 percent only from the nonexempt amount. See the IRS Form W-14 and its instructions.

(e) Exemptions from the withholding under this clause are described at 26 CFR 1.5000C-1(d)(5) through (7). Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the [26 U.S.C. 5000C](#) tax are adjudicated by the IRS as the [26 U.S.C. 5000C](#) tax is a tax matter, not a contract issue.

(f) Taxes imposed under [26 U.S.C. 5000C](#) may not be—

(1) Included in the contract price; nor

(2) Reimbursed.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of clause)

ADDENDUM TO CONTRACT CLAUSES FAR AND DOSAR CLAUSES NOT PRESCRIBED IN PART 12

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at: [Acquisition.gov](#) this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at [e-CFR](#) to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

CYBERSECURITY SUPPLY CHAIN RISK MANAGEMENT REQUIREMENTS (AUG 2024)

(a) Definitions. As used in this clause:

Covered article - The term "covered article" includes-

(1) "Information and Communications technology" which is an industry term for information technology that is involved in integrating telecommunications (e.g., telephone lines and wireless signals) and computers to enable users to access, store, manipulate, transmit, and receive digital information. This includes software, software as a service, digital and data services, and hardware components that support information creation, storage, transfer, and management, like computers and smartphones.

(2) "Telecommunications Equipment", which means equipment, other than customer premises equipment, used by a carrier to provide telecommunications services, and includes software integral to such equipment (including upgrades).

(3) "Telecommunications Service", which means the offering of telecommunications for a fee directly to the public, or to such classes of users as to be effectively available directly to the public, regardless of the facilities used.

(4) "Cybersecurity Supply Chain Risk", which means the risk that a person may sabotage, maliciously introduce unwanted function, extract data, or otherwise manipulate the design, integrity, manufacturing, production, distribution, installation, operation, maintenance, disposition, or retirement of covered articles to surveil, deny, disrupt, or otherwise manipulate the function, use, or operation of the covered articles or information stored or transmitted on the covered articles.

(5) "Incident," which means, per the Federal Information Security Modernization Act of 2014, "an occurrence that (A) actually or imminently jeopardizes, without lawful authority, the integrity, confidentiality, or availability of information or an information system; or (B) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies."

(6) "Vulnerability," means any weakness in an information system, system security procedures, internal controls, or implementation that could be exploited or triggered by a threat source.

(b) *Contractor Cybersecurity Supply Chain Risk Management Responsibilities.* The Contractor must regularly identify, assess, monitor, and mitigate cybersecurity supply chain risks when providing covered articles or services to the Government. The Contractor shall maintain artifacts (i.e., any byproduct of hardware or software development that helps describe the architecture, design, and function of that hardware or software) that document its compliance with this paragraph and shall provide these artifacts to the Government within 48 hours of request, which may be redacted to remove sensitive proprietary information.

(c) *Supporting Government Cybersecurity Supply Chain Risk Assessments.* No more than an estimated once per year, the Contractor must provide any requested information related to its supply chain within 10 business days except information that is protected by a non-disclosure agreement with its customers (e.g., another federal agency).

(d) *Novation Agreement Notice.* FAR 42.1203 require Government approval of novation agreements. For proposed novation agreements for this contract, the Contractor shall provide

any information requested by the Government regarding the proposed successor's identity and information regarding its supply chain.

(e) *Notification procedures for cybersecurity supply chain incidents.* When an incident occurs, the Contractor must contact the CO or their designee within 72 hours of the incident.

(f) *Subcontracts.* The Contractor shall insert the substance of this clause in all subcontracts and other contractual instruments in support of this contract.

(g) *Attestation following Major Version Change.* For software provided under the contract that required an approved Secure Software Development Attestation Form, the responses on this form apply to the software's major version changes (e.g., using a semantic versioning schema of Major.Minor.Patch, the software version number goes from 2.5 to 3.0) unless the Contractor otherwise notifies the Contracting Officer that the form is no longer valid. This notification to the Contracting Officer must be submitted within 15 days of the major version change and must include a new completed and signed Secure Software Development Attestation Form.

(end of clause)

THE FOLLOWING FEDERAL ACQUISITION REGULATIONS (FAR) CLAUSES ARE
INCORPORATED BY REFERENCE:

<u>CLAUSE</u>	<u>TITLE AND DATE</u>
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS (NOV 2023)
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (OCT 2018)
52.204-18	COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE (AUG 2020)
52.204-25	PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)
52.204-27	PROHIBITION ON A BYTEDANCE COVERED APPLICATION (JUN 2023)
52.222-19	CHILD LABOR-COOPERATION WITH AUTHORITIES AND REMEDIES (JAN 2025)
52.225-14	INCONSISTENCY BETWEEN ENGLISH VERSION AND TRANSLATION OF CONTRACT (FEB 2000)
52.228-3	WORKERS' COMPENSATION INSURANCE (DEFENSE BASE ACT) (JUL 2014)
52.228-4	WORKER'S COMPENSATION AND WAR-HAZARD INSURANCE OVERSEAS (APR 1984)

- 52.228-5 INSURANCE-WORK ON A GOVERNMENT INSTALLATION (JAN 1997)
- 52.229-6 TAXES-FOREIGN FIXED-PRICE CONTRACTS (FEB 2013)
- 52.232-39 UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS (JUNE 2013)
- 52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023)
- 52.244-6 SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025)

THE FOLLOWING FAR CLAUSES ARE PROVIDED IN FULL TEXT:

52.216-18 ORDERING (AUG 2020)

- (a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from March 1, 2026 through February 28, 2027 and any option periods if exercised.
- (b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.
- (c) A delivery order or task order is considered “issued” when –
 - (1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;
 - (2) If sent by fax, the Government transmits the order to the Contractor’s fax number; or
 - (3) If sent electronically, the Government either –
 - (i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or
 - (ii) Distributes the delivery order or task order via email to the Contractor’s email address.
- (d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 ORDER LIMITATIONS (OCT 1995)

- (a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than 50plan packages , the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor-

- (1) Any order for a single item in excess of 900 plan packages;
- (2) Any order for a combination of items in excess of *1500 plan packages*; or
- (3) A series of orders from the same ordering office within 30 days that together call for quantities exceeding the limitation in subparagraph (1) or (2) above.

(c) If this is a requirements contract (i.e., includes the Requirement clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) above.

(d) Notwithstanding paragraphs (b) and (c) above, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 30 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

52.216-22 INDEFINITE QUANTITY (OCT 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after the contract's effective period.

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within the performance period of the contract.

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within the performance period of the contract or within 30 days after funds for the option year become available, whichever is later.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed three (3) years.

52.232-19 AVAILABILITY OF FUNDS FOR THE NEXT FISCAL YEAR (APR 1984)

Funds are not presently available for performance under this contract beyond September 30 of the current calendar year. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond September 30 of the current calendar year, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

THE FOLLOWING DOSAR CLAUSES ARE PROVIDED IN FULL TEXT:

652.211-70802 (Nov 2025) Department Branding and Marking needs.

As a condition of this contract, the contractor shall ensure that all programs, funding, and assistance provided under this contract clearly acknowledge United States (U.S.) Department of State or U.S. Government support. All materials produced to communicate or promote a program, event, project, activity, or assistance under this contract, including but not limited to, invitations to events, press materials, event backdrops, podium signs, etc., must be marked with the standard, rectangular U.S. flag available at [Guidance for Contracts and Grants - Contracts and Grants - U.S. Department of State Brand System](#) and the standard U.S. flag and communicate that the program is supported by the Department of State.

Subcontracts are subject to the Department of State marking requirements, and prime contractors must insert the substance of this clause, including this paragraph, in all subcontracts.

For all Department-funded awards, any publications shall include the following text: *"This [report/article] was funded [in part] by the United States Department of State. The opinions,*

findings, and conclusions stated herein are those of the author[s] and do not necessarily reflect those of the United States Department of State.”

(End of clause)

652.215-70 EXAMINATION OF RECORDS

(a) With respect to matters related to this contract or a subcontract hereunder, the Department of State Office of the Inspector General, or an authorized representative, shall have upon request:

(1) Complete, prompt, and free access to all Contractor and Subcontractor files (in any format), documents, records, data, premises, and employees, except as limited by law; and

(2) The right to interview any current Contractor and Subcontractor personnel, individually and directly, with respect to such matters.

(b) This clause may not be construed to require the contractor or any subcontractor to create or maintain any record that the contractor or subcontractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(c) The Contractor shall insert a clause containing all the terms of this clause, including this [paragraph \(c\)](#), in all subcontracts under this contract other than acquisitions described in Federal Acquisition Regulation 15.209(b)(1).

652.216-70 ORDERING - INDEFINITE-DELIVERY CONTRACT (APR 2004)

The Government shall use one of the following forms to issue orders under this contract:

(a) The Optional Form 347, *Order for Supplies or Services*, and Optional Form 348, *Order for Supplies or Services Schedule - Continuation*; or,

(b) The DS-2076, *Purchase Order, Receiving Report and Voucher*, and DS-2077, *Continuation Sheet*.

652.229-70 EXCISE TAX EXEMPTION STATEMENT FOR CONTRACTORS WITHIN THE UNITED STATES (JUL 1988)

This is to certify that the item(s) covered by this contract is/are for export solely for the use of the U.S. Foreign Service Post identified in the contract schedule.

The Contractor shall use a photocopy of this contract as evidence of intent to export. Final proof of exportation may be obtained from the agent handling the shipment. Such proof shall be accepted in lieu of payment of excise tax.

652.232-70 PAYMENT SCHEDULE AND INVOICE SUBMISSION (FIXED-PRICE)
(AUG 1999)

(a) General. The Government shall pay the Contractor as full compensation for all work required, performed, and accepted under this contract the firm fixed-price stated in this contract.

(b) Invoice Submission. The Contractor shall submit invoices to TbilisiFMOVouchering@state.gov . To constitute a proper invoice, the invoice shall include all the items required by FAR 32.905(e).

(c) Contractor Remittance Address. The Government will make payment to the Contractor's address stated on the cover page of this contract, unless a separate remittance address is shown below:

652.242-70 CONTRACTING OFFICER'S REPRESENTATIVE (COR) AUG 1999)

(a) The Contracting Officer may designate in writing one or more Government employees, by name or position title, to take action for the Contracting Officer under this contract. Each designee shall be identified as a Contracting Officer's Representative (COR). Such designation(s) shall specify the scope and limitations of the authority so delegated; provided, that the designee shall not change the terms or conditions of the contract, unless the COR is a warranted Contracting Officer and this authority is delegated in the designation.

(b) The COR for this contract is Giorgi Nanobashvili US Embassy Tbilisi DTO deputy Supervisor..

652.242-73 AUTHORIZATION AND PERFORMANCE (AUG 1999)

(a) The Contractor warrants the following:

(1) That is has obtained authorization to operate and do business in the country or countries in which this contract will be performed;

(2) That is has obtained all necessary licenses and permits required to perform this contract; and,

(3) That it shall comply fully with all laws, decrees, labor standards, and regulations of said country or countries during the performance of this contract.

(b) If the party actually performing the work will be a subcontractor or joint venture partner, then such subcontractor or joint venture partner agrees to the requirements of paragraph (a) of this clause.

652.243-70 NOTICES (AUG 1999)

Any notice or request relating to this contract given by either party to the other shall be in writing. Said notice or request shall be mailed or delivered by hand to the other party at the address provided in the schedule of the contract. All modifications to the contract must be made in writing by the Contracting Officer.

Company Profile: Magticom LLC
General Director – George Gagnidze
7 Politkovskaya str., Tbilisi 0186
Identification number: 204876606

Contact person: Levan Norakidze
Tel: (995 32) 217 17 17; Mob: 599288980
Fax: (995 32) 2171 171; (995 32) 2171 170
Email: office@magticom.ge; levan.norakidze@magticom.ge

JSC Bank of Georgia, bank code: BAGAGE22, S/A: GE66BG0000000241607901
JSC TBC Bank, bank code: TBCBGE22, S/A: GE96TB0600000899467899
JSC Liberty Bank, bank code: LBRTGE22, S/A: GE81LB0113116112371050

Magticom LLC is Georgia's leading telecommunications company, Incorporated as a mobile communications operator on **12 February 1996**, Magticom LLC began commercial operations in **September 1997**. Its shareholders are U.S.-based companies: **International Telcell Cellular LLC** and **Telcell Wireless LLC**.

On **22 September 1997**, the first commercial call was made using Magticom's mobile network. As the GPRS network was developed, the first GPRS call was made in 2001. After setting up its 3G network, Magticom launched such 3G services as video call, mobile TV, and high-speed internet in 2006.

In **April 2008**, Magticom expanded into fixed telephony by launching **MagtiFix**.

In **January 2012**, the company introduced **Magtisat**, Georgia's first satellite broadcasting operator, offering premium quality TV service nationwide.

In **December 2013**, Magticom launched its own TV channels—**Magti Hit**, **Magti Cinema**, and **Our Magti**—for Magtisat users, – thereby laying foundations to broadcasting in parallel with acting as a satellite operator.

The **4G/LTE network** was launched on **1 February 2015**, followed by the introduction of the **4.5G LTE-Advanced** network on 31 May 2016.

The **5G** LTE-Advanced network was launched on **23 October 2024**.

On **30 May 2016**, Magticom signed a contract with **Caucasus Online LLC (Internet Service Provider)** to acquire its retail internet assets. Subsequently, on 1 August 2016, Magticom began providing cable internet, IPTV, fixed telephony, and hosting services.

Later that year, on **21 November 2016**, Magticom acquired **100% of Deltacom (Internet Service Provider)** through a signed agreement.

Today, Magticom is a **market leader in Georgia's telecommunications sector**, offering a **full suite of services**, including:

- **Mobile Telephony** (2G, 3G, 4G, 4.5G, and 5G LTE Advanced)
- **Fixed Telephony**
- **Internet Services**
- **TV Services**

Magticom holds the **ISO/IEC 27001 certification** (Certificate number: IS 795845).

You can verify the certification via the official BSI directory:

[BSI Client Directory - Certificate IS 795845](#)

By keeping a watchful eye on innovations and trends unfolding in the world, Magticom has always been and will continue to be the first in implementing technological innovations in the Georgian telecommunications sector.

Magticom in the Cellular Communications Market

Through a strong commitment to understanding customer needs and delivering services of the highest quality, Magticom has earned a high level of customer loyalty and established itself as a leader in the cellular communications industry.

Quality is at the core of Magticom's success. From **2012 to 2026**, Magticom has won **all consolidated government tenders** in telecommunications. Its major subscribers include:

- Ministry of Defence of Georgia
- Ministry of Internal Affairs of Georgia
- Ministry of Finance of Georgia
- Ministry of Justice of Georgia
- Ministry of Foreign Affairs of Georgia
- Over 700 other government agencies
- EUMM, BP, Bank of Georgia, TBC Bank, Liberty Bank, all major embassies, and international organizations

Currently, Magticom provides telecommunications services to more than 3 million subscribers nationwide

SECTION 3 - SOLICITATION PROVISIONS

Years of experience of serving deferent companies with different needs in telecommunication field has made Magticom capable to provide its clients with qualified services, personnel, necessary equipment and financial resources to perform any work connected with Magticom's part of fulfilling this contract.

Magticom's back up lines, tech personal, service centers, mobile offices, distribution departments and wide network of dealers throughout Georgia ready to serve customers and provide them with additional work immediately gives us the possibility of being ready for an emergency situations or even for a disaster.

Our Company has been serving important clients such as:

1. US Embassy - since 2010 – present;
Address: 29 Georgian-American Friendship Avenue
Didi Dighomi
Tbilisi, 0131, Georgia
Telephone: +995 227-70-00;
2. USAID - since 2008 – present;
Address: 29 Georgian-American Friendship Avenue
Telephone: +995 (32) 254-40-00
Fax: +995 (32) 254-41-45
3. EUMM (European Union Monitoring Mission) in Georgia - since 2013 – present;
Address: 64a Ilia Chavchavadze ave.
Tel: +995 32 2 721800; +995 32 2 719300;
E-mail: contact@eumm.eu
4. British Embassy Tbilisi - since 2005 – present;
Address: 51 Krtsanisi Street Tbilisi, Georgia
Telephone: +995 (32) 227 47 47
5. TBC Bank - since 2004 – present;
Address: 7 Marjanishvili
Telephone: +995 (32) 227-27-27;
E-mail: info@tbcbank.com.ge
6. Bank of Georgia - since 2005 – present;
Address: 29 Gagarini str.
Telephone: +995 32 244 44 44
E-mail: customerservice@bog.ge

Mobile Services

To improve the service standard, our corporate organizations have been transferred to a new platform of our new billing system, allowing to offer new products and provide the best quality communication services comfortably and easily.

Corporate portal of MagtiCom, allows you to manage and check the numbers registered on your organization at any day of the week:

- Limits
- Internet/airtime/SMS package
- Roaming
- Detailed billing
- Number reports according to limits, packages and roaming

Personal portal of MagtiCom (Mymagti.com) – Magti office in your mobile phone enables you to purchase:

- Internet/airtime/SMS packages from personal and corporate balance accounts
- Check and fill in your balance
- Choose an automatic mode of recurrent purchasing package

In order to decrease expenses while **roaming**, we offer you to have three types of roaming service

- Voice Roaming
- Internet Roaming
- Cheap roaming “Traveler” (for more information visit our official web-page: www.magticom.ge)

Supplementary Service

- Apply discount for bulk calls made within the provider's network;
- Permit the The US Embassy in Georgia to suspend any SIM card as required and receive a reissue of that SIM Card number for free;
- Payment for all calls will be post-paid;
- Provide free detailed itemized billing for each SIM card (electronic and hard-copy) each month; details available on request;
- Provide, on receipt of a request , the usage details of any US Embassy SIM card within a reasonable time-frame ;
- It is essential that the existing and established telephone numbers can be maintained. Details of the proposed procedure and timelines for the switchover must to be provided as the existing GSM service is the principle method of communication;
- All SIM cards must be capable of using the GSM provider's data (5G; 4.5G; 4G etc.) networks. Provision of monthly and annual volume based data tariffs;
- Magticom can provide 24/7 support call-center as a 1st level support. Moreover you - as a VIP organization, will be provided with individual account and sales managers and also 24/7 support.

Split Accounts

Company Account/Personal Account

- Company Account - the account on which all settlements are effected by the company. It allows unrestricted assignment of limits.
- Personal account - account, on which all settlements are effected by the private individual. The personal account allows the same discounts on per minute tariff as the company account.

You can choose any form of service (at your discretion, concurrently create one, two or three different groups or select just one) and provide maximum control of your expenses.

- 1) Agreed fixed charge + full coverage of expenses (permanent full connection between the group members. All costs are transferred to the corporate account).
- 2) Agreed fixed charge + fixed limit on calls outside the network (permanent full connection between the group members. Within the limit, all costs are transferred to the corporate account, while those exceeding the limit - to the personal account. Each first day of month the new limit becomes active).
- 3) Agreed fixed charge on mobile phones (permanent full connection between the group members. All the other costs shall be applied to the personal account).

Groups and payment according to groups

In case of corporate service each number has a personal and a corporate account		
Group II (Limited)	Group III (Limited 0)	Relative
Payment for the received services shall be effected within the amount (limit) agreed and determined by the Parties, under the condition of post-payment by the purchasing Party. In order to receive services exceeding the amount agreed by the Parties the payment shall be effected on pre-paid basis.		Payment for the received services shall be effected on pre-paid basis. The amount stipulated by the subscription fee (for free group calls) shall be gradually deducted from the account of the subscriber, proportionally to the number of days in the calendar month. Tariffs for all other directions will be standard and are given on www.magticom.ge

- Payment of 112 service for the first, second and third groups shall be made by a subscriber, whereas for the fourth group, the payment shall be effected by the individual using the number.
- If, upon payment of a subscription fee by a subscriber, any of the numbers still has indebtedness (in 2nd and 3rd groups), such number will be allowed connection only between the corporate numbers.
- Accrual of the subscription fee shall be effected from the first date of each month. In the case of termination of this Agreement or any part thereof at any time of the calendar month, the subscriber shall be obliged to pay the subscription fee for such month in full.



Coverage Area and Frequencies

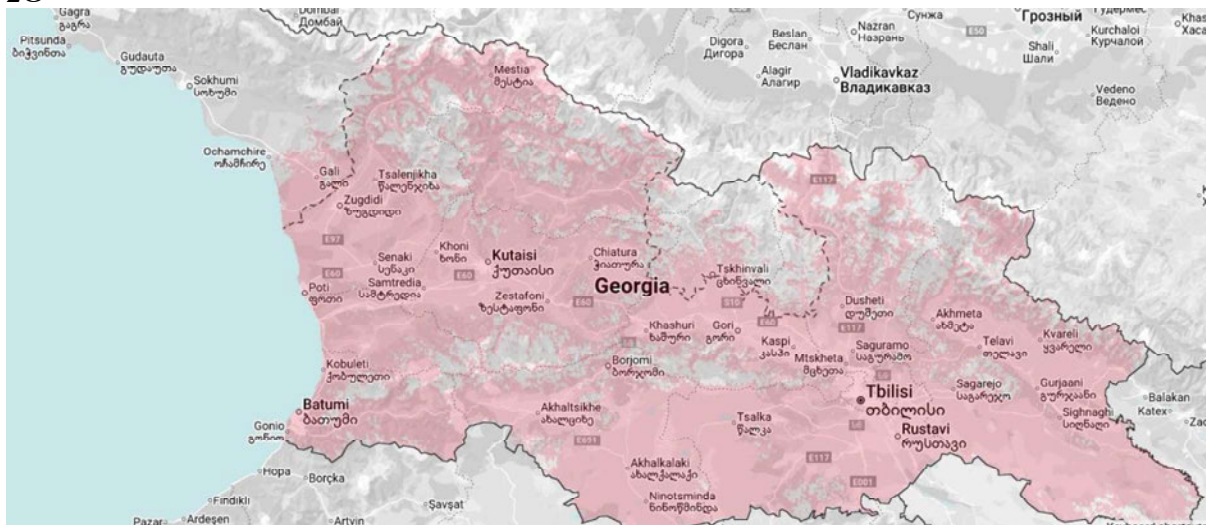
Currently, the MagtiCom mobile network provides: GSM (2G and 2.5G), UMTS (3G and 3.5G HSPA+), LTE (4G, 4.5G LTE-Advanced) and 5G. These technologies are implemented on 700, 800, 900, 1800, 2100, 2600 and 3500 MHz frequency bands.

The coverage area of "MagtiCom" network is 99% of the populated controlled territory of Georgia (with 13 012 base stations). The Company leads the mobile market (with the 41.2% of market share; june 2025). MagtiCom provides various services to nearly 3 million customers by means of 50 customer care offices and 88 Outlets in Public Service halls. Since 2016, MagtiCom has been an ISP and, as a result, a provider of a total range of communications services. Since November 2017, Magticom has been the market leader ISP operator in Georgia.

MagtiCom now owns license for all the latest technologies in mobile communications being the unchallenged leader in the telecommunication market of Georgia.

Magticom's official webpage provides comprehensive information on current network coverage and service availability. It can be accessed via the following link:
<https://www.magticom.ge/ka/about-company/offices>

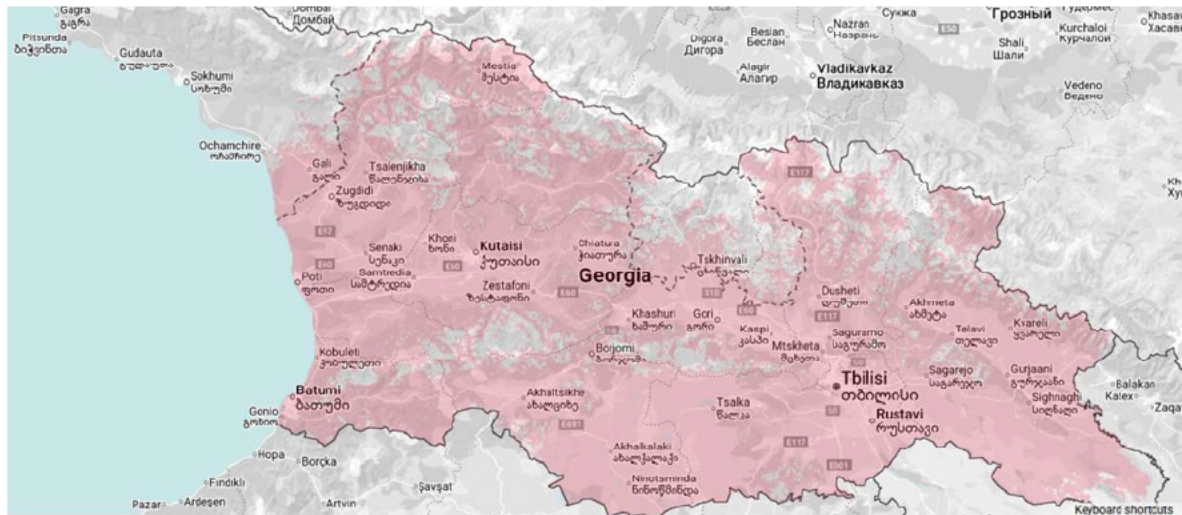
2G



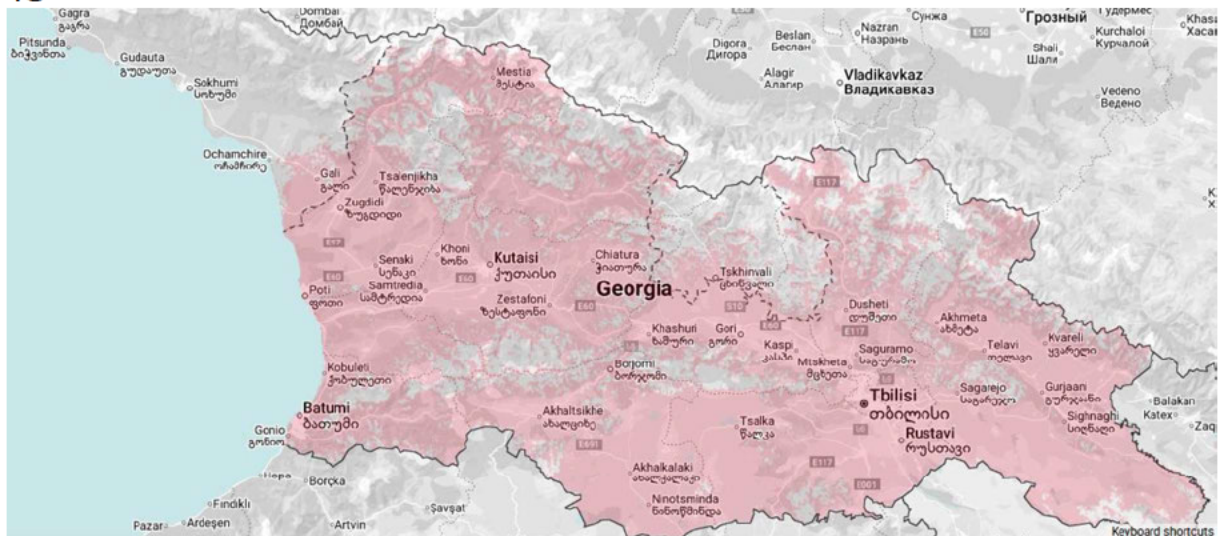


მაგთიკომი
MAGTICOM

3G



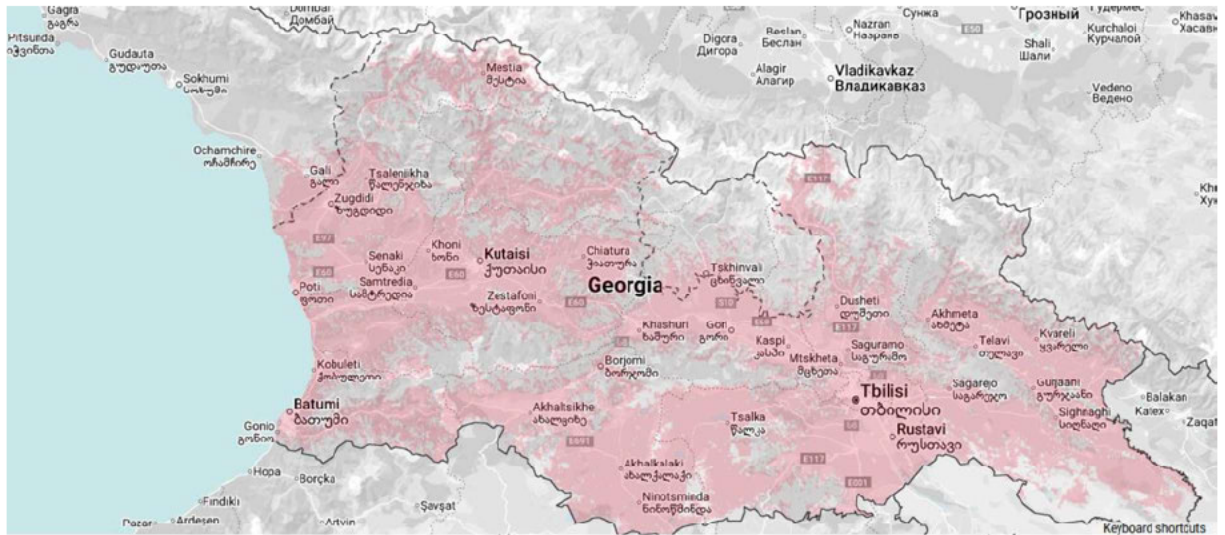
4G



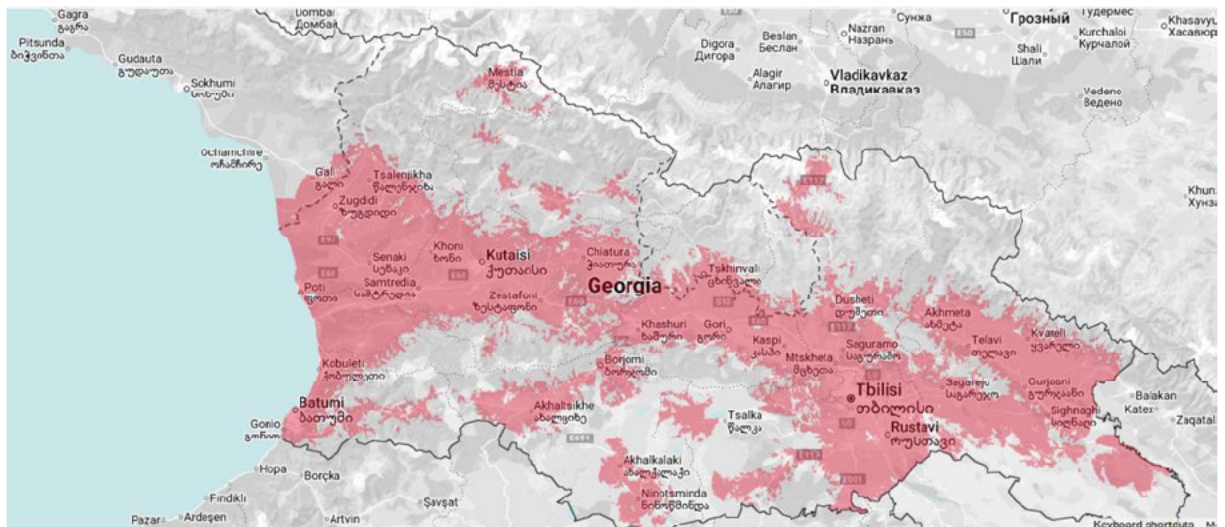


მაგთიკომი
MAGTICOM

4.5G



5G



	2G	3G	4G	5G
Coverage By Settlements (Occupied territories not included) %	Up to 99%			Up to 80%

An explanation of the risks and assumptions affecting the execution of the contract

Magticom LLC shall not be liable to the US Embassy in Georgia for any delay or non-performance of its obligations in the event and to the extent that such delay or non-performance is due to an event of Force Majeure. Events of Force Majeure are events beyond the control of the Magticom LLC which occur after the date of signing of the Contract and which were not reasonably foreseeable at the time of signing of this Contract and whose effects are not capable of being overcome without unreasonable expense.

The following events shall be recognized as events of Force Majeure: War, hostilities (whether war be declared or not) invasion of foreign enemies; rebellion, revolution, insurrection, military or usurped power or civil war; riot, civil commotion or disorder; acts of government, natural disasters, exceptional weather conditions; breakdown or general unavailability of transport facilities, or any circumstances beyond the reasonable control of Magticom LLC.

Recovery plan in the event of an emergency or disaster

Magticom LLC disposes sufficient stocks and spare materials and hardware used in provision mobile and fixed telephony, as well as fixed broadband services. To ensure service availability, Magticom maintains backup lines and alternative fixed broadband service infrastructure on most strategic regions across country.

Contact Information: Tamar Makhoshvili, Tamar Pavliashvili

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Tel.: (+995 32) 2171404, 32 2170000

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Website: www.magticom.ge

E-mail: tamar.makhoshvili@magticom.ge;

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